D Measure

Ballot Question

To maintain local road maintenance authority and provide dedicated funding for road maintenance and related services, shall a measure imposing a $100 annual special tax per parcel, raising approximately $100,000 annually until repealed by voters with all funds spent locally, be adopted pursuant to Post Mountain PUD Ordinance No. 2026-01?

This measure is subject to approval by two-thirds of the votes voting on the measure to pass.

Yes	No
A “yes” vote is a vote in favor of authorizing the one hundred ($100.00) dollar annual special tax per parcel for road maintenance and related services within the District.	A “no” vote is a vote against authorizing the special tax.

For and against Measure D	
For	None submitted.
Against	None submitted.

Approval of Measure D requires two-thirds of the votes cast on the measure. If approved, the measure will take effect immediately. The tax would continue until repealed by the voters, until the District no longer provides the services and the lien is canceled in accordance with law or until the District Board ceases to levy the tax.

Local Ballot Measure D

Impartial Analysis of Measure D

The Board of Directors of the Post Mountain Public Utility District (the "District") has placed Measure D on the ballot for the November 3, 2026 General Election. Measure D would authorize a special tax for road maintenance and related services within the District.

If approved, D would impose an annual special tax of one hundred ($100.00) dollars on each lot or parcel within the District, as identified by an Assessor's Parcel Number assigned by the Trinity County Assessor. If a parcel is later subdivided, each resulting parcel would be subject to the tax separately. If parcels are merged or combined under a single Assessor's Parcel Number, the resulting parcel would be treated as one parcel for purposes of the tax.

The proceeds of the special tax would be used only for road maintenance and related services, including, among other things:

- Road grading and surface maintenance;
- Snow removal;
- Culvert maintenance and drainage improvements;
- Erosion control and sediment reduction;
- Emergency road repair; and
- Equipment necessary to perform road maintenance services.

Tax proceeds must be deposited into a separate account and the District must prepare an annual report identifying funds collected and expended. The measure would not apply to certain government-owned property that is exempt from taxation under applicable law.

Except for Fiscal Year 2026-27, the special tax would be collected in the same manner and at the same time as Trinity County property taxes, unless the District Board selects another lawful method, including direct billing. Delinquent taxes would be subject to the same penalties, interest, collection procedures, and lien priority applicable to delinquent property taxes. The special tax would be secured by a continuing lien on non-exempt real property in the District until canceled as provided by law or until collection of the special tax ceases.

The District estimates that the special tax would raise approximately one hundred thousand ($100,000.00) dollars annually. The District will reimburse the County for the actual costs of conducting the election.

Approval of Measure D requires two-thirds of the votes cast on the measure. If approved, the measure will take effect immediately. The tax would continue until repealed by the voters, until the District no longer provides the services and the lien is canceled in accordance with law or until the District Board ceases to levy the tax.

A "yes" vote is a vote in favor of authorizing the one hundred ($100.00) dollar annual special tax per parcel for road maintenance and related services within the District.

A "no" vote is a vote against authorizing the special tax.

This impartial Analysis is hereby submitted to the Elections Official in conformance with Section 9313 of the Elections Code of the State of California.

Full Text of Local Ballot Measure D

ORDINANCE NO. 2026-01
ORDINANCE OF THE BOARD OF DIRECTORS OF THE POST MOUNTAIN PUBLIC UTILITY DISTRICT AUTHORIZING THE LEVY OF A SPECIAL TAX TO FUND ROAD MAINTENANCE

WHEREAS, the Post Mountain Public Utility District ("District") is an independent special district authorized to provide road maintenance, fire protection, and related services pursuant to the Public Utility District Act (Public Utilities Code§15501 et seq.); and

WHEREAS, road maintenance responsibilities within the Post Mountain area are shared among the District, the Trinity County Department of Transportation, and the United States Forest Service, with the District responsible for approximately 27 miles of local roads serving residents and property owners within the District; and

WHEREAS, Article XIII A, Section 4 and Article XIII C of the California Constitution authorize local government agencies to impose special taxes subject to approval by two-thirds of the voters voting on the measure, and Government Code Sections 50075 et seq. and 53724 authorize the governing body of a local agency to submit such a special tax measure to the voters for approval and to provide for the collection of the tax on the property tax roll; and

WHEREAS, the Trinity Local Agency Formation Commission (LAFCo) adopted a Municipal Service Review and Sphere of Influence Update for the District on August 15, 2023, which documented deficiencies in the District's ability to provide services, including the lack of a dedicated funding source for road maintenance and reliance on donations and fire assessment revenues to maintain roads; and

WHEREAS, the District retained Trinity Valley Consulting Engineers (TVCE) in 2024 to prepare a Road Maintenance Rate Study, which included an inventory of roads and culverts within the District and estimated that the cost of basic annual road maintenance is approximately $180,500 per year, equivalent to approximately $173 per parcel annually if shared equally among property owners; and

WHEREAS, the Board of Directors ("Board") has reviewed the findings of the TVCE Rate Study and recognizes that the District must establish a dedicated funding source for road maintenance while continuing to pursue additional funding sources, including grants, partnerships, and interagency coordination; and

WHEREAS, on October 15, 2024, Trinity LAFCo adopted Resolution 2024-03, a Resolution of Intent to Initiate Dissolution of the Post Mountain Public Utility District pursuant to Government Code Section 56375.1, based on documented service deficiencies and limited capacity to sustainably provide services; and

WHEREAS, Resolution 2024-03 established a twelve-month remediation period during which the District was directed to address deficiencies and demonstrate measurable progress toward sustainable service delivery; and

WHEREAS, on November 4, 2025, Trinity LAFCo adopted Resolution No. 2025-07, extending the remediation period through December 31, 2026 in recognition of progress made by the District and to allow additional time for the District to establish a sustainable funding source for road maintenance as a critical factor in determining the long-term viability of the District; and

WHEREAS, the Commission further determined that the District's ability to secure a reliable funding source for road maintenance services will be an important factor in determining whether the District has remedied the deficiencies identified in the Municipal Service Review, and that failure to establish such a funding source may require the Commission to consider dissolution or reorganization of the District pursuant to Government Code Section 56375.1; and

WHEREAS, the Board of Directors finds that establishing a special tax described herein represents a necessary step toward establishing a sustainable funding source for road maintenance services, including maintenance, repair, snow removal, grading, drainage improvements, and related services within the District and improving the District's capacity to provide essential services to the Post Mountain community.

WHEREAS, the Board finds that the Post Mountain Public Utility District- Volunteer Road Department does not bear the responsibility and liability for maintaining the Trinity County and United States Forest Service roads and culverts within the District; and

WHEREAS, the Board finds that the Trinity Valley Consulting Engineers Report failed to exclude the Trinity County and the United States Forest Service roads and culverts in the Road Maintenance Rate Study such as Trinity Pines Dr, Chrome Mine Rd, Westridge Rd, and Rattlesnake Rd; and

WHEREAS, the Board finds that levying assessment of $100.00 per parcel annually are sufficiently to sustain road maintenance services over time in the district; and

WHEREAS, the Board further finds that the special tax described herein will provide a dedicated source of base funding to support road maintenance activities, supplementing other funding sources while the District continues to pursue grants, partnerships, and additional funding mechanisms necessary to address the full cost of maintaining and repairing the District's road system.

NOW, THERFORE, BE IT ORDAINED BY THE BOARD OF DIRECTORS OF POST MOUNTAIN PUBLIC UTILITY DISTRICT, AS FOLLOWS:

Section 1. Incorporation of Recitals. The Recitals set forth above are incorporated herein, are made findings and determination of the Board, and are an operative part of this Ordinance.

Section 2. Establishment of Special Tax. Subject to approval by the voters as required by law, a special tax for road maintenance is hereby established within the Post Mountain Public Utility District, and shall continue in force and effect until the District no longer provides the services and the lien canceled in accordance with law or until the special tax ceases to be levied by the Board. The special tax shall be levied as follow:

One Hundred Dollars ($100.00) per year for each lot or parcel within the District, as identified by an Assessor's Parcel Number assigned by the Trinity County Assessor. If a parcel is subsequently subdivided, each resulting parcel shall be subject to the tax separately. If parcels are merged or combined under a single Assessor's Parcel Number, the resulting parcel shall be treated as a single parcel for purposes of this tax.

Section 3. Purpose of Tax. Revenues generated by this special tax shall be used solely for road maintenance and related services, including but not limited to:

- Road grading and surface maintenance;
- Snow removal;
- Culvert maintenance and drainage improvements;
- Erosion control and sediment reduction;
- Emergency road repair; and
- Equipment necessary to perform road maintenance services.

Section 4. Accountability Measures. Pursuant to Government Code Section 50075.1, the following accountability measures shall apply:

1. Revenue from the special tax shall be used only for the purposes stated herein.
2. The proceeds of the special tax shall be deposited into a separate account.
3. The District shall prepare an annual report on funds collected and expended.

Section 5. Exemption and Tax. The special tax shall not be imposed upon property owned by the United States, the State of California, or any department, agency, or political subdivision thereof, including the county, school districts, and special districts to the extend such government owned property is exempt from taxation under Article XIII, Section 3 of the California Constitution and applicable provisions of the California Revenue and Taxation Code, or as otherwise provided by law.

Section 6. Collection of Tax; Penalties: Enforcement. With the exception of the 2026-27 Fiscal Year, the special tax shall be collected in the same manner and at the same time as ad valorem property taxes are collected by the County of Trinity, or in such other manner as this Board shall determine, including without limitation, direct billing of the affected property owners, and shall be subject to the same penalties, procedure, sale and lien priority in any case of delinquency as applicable for ad valorem taxes. To any of the tax imposed by this Ordinance which becomes delinquent shall be added a penalty equal to that imposed on delinquencies in the ad valorem property tax. The tax and penalty shall bear interest at a rate equal to the interest rate imposed on unpaid ad valorem property taxes. The special tax shall be a lien on the property on which it is levied, and the enforcement of the collection of such taxes may be made in the same manner and by the same means as is provided by law for the enforcement of liens for state and county taxes, all of the provisions of law relating to the enforcement of the latter being hereby made a part of this Ordinance, as far as applicable. The special taxes authorized to be levied shall be secured by the lien imposed pursuant to Sections 3114.5 and 3115.5 of the Streets and Highways Code of the State of California, which lien shall be a continuing lien to secure each levy of the special tax, shall attach to all non-exempt real property in the District and shall continue in force and effect until the lien is canceled in accordance with law or until collection of the special tax by the legislative body ceases.

Section 7. Effective Date. This Ordinance shall take effect immediately upon its approval by two-thirds of the voters voting on the measure at an election held within the District in the manner provided by law.

Section 8. Severability. If any provision of this Ordinance, or the application thereof to any person or circumstance is held invalid, the remainder of the Ordinance and the application of such provisions to other persons or circumstances shall not be affected thereby and to this end the provisions of this Ordinance are severable.